

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 29-002
Amendments to Titles 1 and 2 of the Chickasaw Nation Code
(Corrections)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted laws codified in Titles 1 and 2 of the Chickasaw Nation Code, and

WHEREAS, the Tribal Legislature desires to amend those laws.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Titles 1 and 2 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

"TITLE 1
"1. GENERAL PROVISIONS"

CHAPTER 1
DEFINITIONS, INTERPRETATION,
APPLICABILITY

<u>SECTION 1-101.1</u>	<u>CITATION OF CODE.</u>
<u>SECTION 1-101.2</u>	<u>DEFINITIONS.</u>
<u>SECTION 1-101.3</u>	<u>CONFLICTING PROVISIONS.</u>
<u>SECTION 1-101.4</u>	<u>CATCHLINES AND HEADINGS.</u>
<u>SECTION 1-101.5</u>	<u>TERRITORIAL APPLICABILITY.</u>
<u>SECTION 1-101.6</u>	<u>CODE SEVERABILITY.</u>

CHAPTER 3
DISTRICTS OF THE NATION & APPORTIONMENT

<u>SECTION 1-301.1</u>	<u>DISTRICTS AND BOUNDARIES.</u>
<u>SECTION 1-301.2</u>	<u>APPORTIONMENT; DEFINITIONS.</u>
<u>SECTION 1-301.3</u>	<u>DATES OF REAPPORTIONMENT.</u>
<u>SECTION 1-301.4</u>	<u>FORMULA AND BASIS FOR REAPPORTIONMENT.</u>
<u>SECTION 1-301.5</u>	<u>LOSS AND ADDITION OF SEATS; ELECTION BY DISTRICT.</u>
<u>SECTION 1-301.6</u>	<u>RENUMBERING OF SEATS.</u>
<u>SECTION 1-301.7</u>	<u>REAPPORTIONMENT; CURRENT SEATS.</u>

CHAPTER 4 GREAT SEAL OF THE NATION

<u>SECTION 1-401.1</u>	<u>LEGAL AUTHORITY FOR USE OF THE SEAL.</u>
<u>SECTION 1-401.2</u>	<u>SEAL RECOGNIZED; DEFINED.</u>
<u>SECTION 1-401.3</u>	<u>OTHER DEFINITIONS.</u>
<u>SECTION 1-401.4</u>	<u>SEAL TO BE AFFIXED ON OFFICIAL DOCUMENTS.</u>
<u>SECTION 1-401.5</u>	<u>ORIGINAL SEAL KEPT, USED BY GOVERNOR.</u>
<u>SECTION 1-401.6</u>	<u>USE OF SEAL RESTRICTED TO GOVERNMENTAL ACTIVITIES; EXCEPTIONS.</u>
<u>SECTION 1-401.7</u>	<u>SEAL NOT TO BE REPRODUCED OR USED WITHOUT APPROVAL.</u>
<u>SECTION 1-401.8</u>	<u>UNAUTHORIZED DISPLAY, USE OF SEAL.</u>
<u>SECTION 1-401.9</u>	<u>ORDER TO DISCONTINUE USE OF SEAL.</u>
<u>SECTION 1-401.10</u>	<u>AUTHORITY TO PROTECT SEAL OF THE CHICKASAW NATION.</u>

CHAPTER 5 COMMUNITY COUNCILS & YOUTH COUNCILS

<u>SECTION 1-501.1</u>	<u>COMMUNITY COUNCILS.</u>
<u>SECTION 1-501.211</u>	<u>YOUTH COUNCILS.</u>
<u>SECTION 1-501.321</u>	<u>COUNCIL OF ELDERS.</u>
<u>SECTION 1-501.422</u>	<u>DUTIES OF COUNCIL.</u>
<u>SECTION 1-501.523</u>	<u>GUIDELINES."</u>

"TITLE 2

"2. ADMINISTRATION OF TRIBAL AFFAIRS AND GOVERNMENT"

CHAPTER 1 FORM OF GOVERNMENT

SECTION 2-101.1
SECTION 2-101.2
SECTION 2-101.3
SECTION 2-101.4
SECTION 2-101.5

DIVISION OF POWERS OF GOVERNMENT.
RECOGNITION BY THE SECRETARY OF INTERIOR.
GOVERNMENT OFFICES.
HOLIDAYS; HOURS.
AMBASSADOR CREATED.

CHAPTER 2 CITIZENSHIP AND ENROLLMENT

SECTION 2-201.1
SECTION 2-201.2
SECTION 2-201.3
SECTION 2-201.4
SECTION 2-201.5
SECTION 2-201.6

CONSTITUTIONAL AUTHORITY.
PREAMBLE.
AUTHORITY.
DEFINITIONS.
QUALIFICATION OF FUTURE CITIZENSHIP.
QUALIFICATION FOR CITIZENSHIP OF CHICKASAW
MIXED-BLOOD.

SECTION 2-201.7
SECTION 2-201.8
SECTION 2-201.9
SECTION 2-201.10

DOCUMENTATION OF CITIZENSHIP.
APPLICATIONS FOR CITIZENSHIP.
PROCESSING OF THE APPLICATION.
ACTIONS OF THE CHICKASAW NATION ON REJECTED
APPLICANTS.

SECTION 2-201.11
SECTION 2-201.12
SECTION 2-201.13
SECTION 2-201.14
SECTION 2-201.15
SECTION 2-201.16

ACTIONS OF THE TRIBAL COURTS.
EFFECTS OF DECISIONS.
CITIZENSHIP CARD.
RECORDS.
LOSS OF CITIZENSHIP.
EFFECTIVE DATE.

CHAPTER 3 CEREMONIES, CUSTOM AND LANGUAGE

SECTION 2-301.1
SECTION 2-301.2
SECTION 2-301.3
SECTION 2-301.4

CHICKASAW NATION ANNUAL MEETING.
CHICKASAW HONOR GUARD.
CHICKASAW BURIAL POLICY.
MAINTENANCE/PRESERVATION OF CEMETERIES.

CHAPTER 4 OFFICERS AND EMPLOYEES OF THE NATION

ARTICLE B SALARIES OF OFFICERS

<u>SECTION 2-402.1</u>	<u>TITLE.</u>
<u>SECTION 2-402.2</u>	<u>FINDING.</u>
<u>SECTION 2-402.3</u>	<u>DEFINITIONS.</u>
<u>SECTION 2-402.4</u>	<u>AUTHORITY.</u>
<u>SECTION 2-402.5</u>	<u>JUDICIAL DEPARTMENT SALARIES.</u>
<u>SECTION 2-402.6</u>	<u>LEGISLATIVE DEPARTMENT SALARIES.</u>
<u>SECTION 2-402.7</u>	<u>EXECUTIVE DEPARTMENT SALARIES.</u>
<u>SECTION 2-402.8</u>	<u>REIMBURSABLE COSTS.</u>
<u>SECTION 2-402.9</u>	<u>REPEAL OF PRIOR LEGISLATION.</u>
<u>SECTION 2-402.1030</u>	<u>EFFECTIVE DATE.</u>

**CHAPTER 5
EMPLOYEES AND PERSONNEL POLICIES**

**ARTICLE A
CHICKASAW INDIAN EMPLOYMENT PREFERENCE**

<u>SECTION 2-5010.01</u>	<u>DISCRIMINATION PROHIBITED; EMPLOYMENT PREFERENCE.</u>
<u>SECTION 2-5010.02</u>	<u>DEFINITION.</u>

**ARTICLE B
POLITICAL ACTIVITIES OF EMPLOYEES**

<u>SECTION 2-5020.01</u>	<u>AUTHORITY.</u>
<u>SECTION 2-5020.02</u>	<u>DEFINITIONS.</u>
<u>SECTION 2-5020.03</u>	<u>EMPLOYEE RIGHTS.</u>

**ARTICLE C
PERSONNEL RULES AND REGULATIONS**

<u>SECTION 2-5030.01</u>	<u>DEFINITIONS; APPLICATION OF RULES.</u>
<u>SECTION 2-5030.02</u>	<u>MERIT SYSTEM.</u>
<u>SECTION 2-5030.03</u>	<u>EQUAL EMPLOYMENT.</u>
<u>SECTION 2-5030.04</u>	<u>NEPOTISM.</u>
<u>SECTION 2-5030.05</u>	<u>ORGANIZATION; POSITIONS.</u>
<u>SECTION 2-5030.06</u>	<u>WRITTEN DUTIES; AUTHORITY TO PERFORM.</u>
<u>SECTION 2-5030.07</u>	<u>EVALUATION.</u>
<u>SECTION 2-5030.08</u>	<u>DISTRIBUTION OF RULES.</u>
<u>SECTION 2-5030.09</u>	<u>CONFLICT WITH OTHER RULES.</u>
<u>SECTION 2-5030.10</u>	<u>WORK WEEK; HOURS.</u>
<u>SECTION 2-5030.11</u>	<u>IRREGULAR HOURS.</u>
<u>SECTION 2-5030.12</u>	<u>TARDINESS.</u>

<u>SECTION 2-5030.13</u>	<u>HOLIDAYS.</u>
<u>SECTION 2-5030.14</u>	<u>ANNUAL LEAVE AND SICK LEAVE.</u>
<u>SECTION 2-5030.15</u>	<u>LEAVE REQUESTS.</u>
<u>SECTION 2-5030.16</u>	<u>ANNUAL LEAVE.</u>
<u>SECTION 2-5030.17</u>	<u>SICK LEAVE.</u>
<u>SECTION 2-5030.18</u>	<u>MEDICAL MATERNITY LEAVE.</u>
<u>SECTION 2-5030.19</u>	<u>ADMINISTRATIVE, PROFESSIONAL LEAVE.</u>
<u>SECTION 2-5030.20</u>	<u>MILITARY LEAVE.</u>
<u>SECTION 2-5030.21</u>	<u>ENFORCED LEAVE.</u>
<u>SECTION 2-5030.22</u>	<u>EDUCATION LEAVE.</u>
<u>SECTION 2-5030.23</u>	<u>LEAVE WITHOUT PAY.</u>
<u>SECTION 2-5030.24</u>	<u>LEAVE FOR COURT AND JURY SERVICE.</u>
<u>SECTION 2-5030.25</u>	<u>FURLOUGH.</u>
<u>SECTION 2-5030.26</u>	<u>SELECTION OF APPLICANTS.</u>
<u>SECTION 2-5030.27</u>	<u>PROBATION.</u>
<u>SECTION 2-5030.28</u>	<u>CLASSIFICATION.</u>
<u>SECTION 2-5030.29</u>	<u>STATUS CHANGE.</u>
<u>SECTION 2-5030.30</u>	<u>CONDUCT.</u>
<u>SECTION 2-5030.31</u>	<u>PERSONNEL ACTIONS.</u>
<u>SECTION 2-5030.32</u>	<u>PROMOTION.</u>
<u>SECTION 2-5030.33</u>	<u>TRANSFERS.</u>
<u>SECTION 2-5030.34</u>	<u>NEW POSITIONS.</u>
<u>SECTION 2-5030.35</u>	<u>SPECIAL DUTY.</u>
<u>SECTION 2-5030.36</u>	<u>DEMOTION.</u>
<u>SECTION 2-5030.37</u>	<u>RESIGNATION.</u>
<u>SECTION 2-5030.38</u>	<u>DISMISSALS; TERMINATIONS; APPEALS.</u>
<u>SECTION 2-5030.39</u>	<u>REVIEW BOARD.</u>
<u>SECTION 2-5030.40</u>	<u>SUSPENSIONS.</u>
<u>SECTION 2-5030.41</u>	<u>REQUIRED NOTICE.</u>
<u>SECTION 2-5030.42</u>	<u>REDUCTION IN FORCE.</u>
<u>SECTION 2-5030.43</u>	<u>COMPENSATION.</u>
<u>SECTION 2-5030.44</u>	<u>PAY SCHEDULE.</u>
<u>SECTION 2-5030.45</u>	<u>OUTSIDE EMPLOYMENT.</u>
<u>SECTION 2-5030.46</u>	<u>HONORARIUMS.</u>
<u>SECTION 2-5030.47</u>	<u>FRINGE BENEFITS.</u>
<u>SECTION 2-5030.48</u>	<u>GRIEVANCES.</u>
<u>SECTION 2-5030.49</u>	<u>INTEREST.</u>
<u>SECTION 2-5030.50</u>	<u>ENFORCEMENT.</u>

ARTICLE E
TRIBAL ENTERPRISES/BUSINESSES PERSONNEL RULES AND REGULATIONS

SECTION 2-5050.01
SECTION 2-5050.02
SECTION 2-5050.03
SECTION 2-5050.04

TITLE.
AUTHORITY.
DEFINITIONS.
POLICY.

ARTICLE G
RIGHT TO WORK

SECTION 2-5070.1
SECTION 2-5070.2

SHORT TITLE.
PARTICIPATION IN LABOR ORGANIZATION AS
CONDITION OF EMPLOYMENT PROHIBITED.

CHAPTER 6
TRAVEL POLICY

ARTICLE A
LEGISLATIVE TRAVEL POLICIES

SECTION 2-601.1

AUTHORITY.

ARTICLE B
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SECTION 2-602.11

TRAVEL POLICY FOR EMPLOYEES AND OFFICIALS.

CHAPTER 8
RECORDS AND ARCHIVES

SECTION 2-801.1
SECTION 2-801.2
SECTION 2-801.3
SECTION 2-801.4
SECTION 2-801.5
SECTION 2-801.6
SECTION 2-801.7
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SECTION 2-801.9
SECTION 2-801.10
SECTION 2-801.11
SECTION 2-801.12
SECTION 2-801.13
SECTION 2-801.14

CITATION OF TITLE.
AUTHORITY.
DEFINITIONS.
CONSTITUTIONAL BASIS.
OTHER NAMES; APPROPRIATE.
PARAMETERS.
EFFECTIVE DATE AND FORMAT.
CONTINUATION OF LAWS.
EXPANSION OF CODE NOT LIMITED.
NEW ENACTMENTS; ADOPTION.
UPDATING AND DISTRIBUTION.
SALES AND REVENUES.
MAINTENANCE; RULES AND REGULATIONS.
TITLES ENUMERATED; CURRENT.

CHAPTER 9
NEWSPAPER

<u>SECTION 2-901.1</u>	<u>TITLE/FINDINGS.</u>
<u>SECTION 2-901.2</u>	<u>DEFINITIONS.</u>
<u>SECTION 2-901.3</u>	<u>AUTHORITY.</u>
<u>SECTION 2-901.4</u>	<u>EDITORIAL POLICY.</u>

CHAPTER 10
TRIBAL BOARDS, COMMISSIONS AND AGENCIES

ARTICLE A
GENERAL PROVISIONS

<u>SECTION 2-1001.1</u>	<u>APPLICABILITY OF THIS ARTICLE.</u>
<u>SECTION 2-1001.2</u>	<u>WRITTEN OATH OF OFFICE.</u>
<u>SECTION 2-1001.3</u>	<u>COMPENSATION.</u>

ARTICLE B
CHICKASAW COMMERCE AND CORPORATION COMMISSION

(RESERVED)

ARTICLE D
CHICKASAW ELECTION COMMISSION

<u>SECTION 2-100431.1</u>	<u>ELECTION COMMISSION ESTABLISHED; MEMBERS.</u>
<u>SECTION 2-100431.2</u>	<u>QUALIFICATIONS OF MEMBERS.</u>
<u>SECTION 2-100431.3</u>	<u>TERM OF OFFICE.</u>
<u>SECTION 2-100431.4</u>	<u>DUTIES OF COMMISSION.</u>
<u>SECTION 2-100431.5</u>	<u>APPOINTMENT OF ELECTION SECRETARY/TRIBAL REGISTRAR.</u>
<u>SECTION 2-100431.6</u>	<u>SUPERVISION OF BALLOT COUNTING BY COMMISSION.</u>
<u>SECTION 2-100431.7</u>	<u>METHODS FOR SEALING BALLOTS; CERTIFICATES; RETURN AND PRESERVATION.</u>
<u>SECTION 2-100431.8</u>	<u>BID SOLICITATION.</u>

ARTICLE E
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SECTION 2-100541.1
SECTION 2-100541.2
SECTION 2-100541.3

AUTHORIZATION; DESIGNATION.
CERTIFICATION OF COMPLIANCE.
RESPONSIBLE FEDERAL OFFICIAL.

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ARTICLE G
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SECTION 2-100761.1
SECTION 2-1007.262.1

APPROVAL.
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ARTICLE H
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SECTION 2-100871.1
SECTION 2-100871.2
SECTION 2-100871.3
SECTION 2-100871.4
SECTION 2-100871.5
SECTION 2-100871.6

TITLE; FINDINGS; DEFINITION.
TAX COMMISSION ESTABLISHED.
TERMS.
NO POLITICAL INFLUENCE; REMOVAL.
DUTIES AND POWERS.
EXISTING LEGISLATION.

ARTICLE I
CHICKASAW UTILITY AUTHORITY

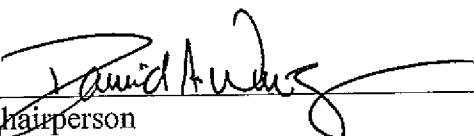
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SECTION 2-100981.7
SECTION 2-100981.8
SECTION 2-100981.9
SECTION 2-100981.10
SECTION 2-100981.11
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SECTION 2-100981.14
SECTION 2-100981.15
SECTION 2-100981.16

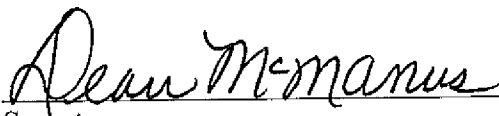
PLAN OF OPERATION.
GENERAL POWERS.
CHAIRMAN.
VICE CHAIRMAN.
SECRETARY.
OTHER BOARD MEMBERS.
CONTRACTS.
COMPENSATION.
REPORTS.
DISPOSITION OF PROPERTY.
CONTRACTS.
CHECKS, DRAFTS, ETC.
MEETINGS.
(RESERVED).
RULES, REGULATIONS AND BY-LAWS.
(RESERVED).

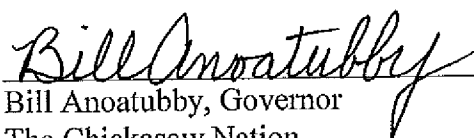
ARTICLE J
CHICKASAW HISTORICAL SOCIETY

<u>SECTION 2-101091.1</u>	<u>CITATION.</u>
<u>SECTION 2-101091.2</u>	<u>PURPOSE.</u>
<u>SECTION 2-101091.3</u>	<u>AUTHORITY.</u>
<u>SECTION 2-101091.4</u>	<u>DEFINITIONS.</u>
<u>SECTION 2-101091.5</u>	<u>MISSION.</u>
<u>SECTION 2-101091.6</u>	<u>BOARD OF DIRECTORS.</u>
<u>SECTION 2-101091.7</u>	<u>DUTIES OF THE BOARD.</u>
<u>SECTION 2-101091.8</u>	<u>MEETINGS AND ATTENDANCE.</u>
<u>SECTION 2-101091.9</u>	<u>BY-LAWS; FORM TAKEN.</u>
<u>SECTION 2-101091.10</u>	<u>PROVISIONS FOR CHAPTERS.</u>
<u>SECTION 2-101091.11</u>	<u>SUPPORT STAFF.</u>
<u>SECTION 2-101091.12</u>	<u>FUNDING AND BUDGET."</u>

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 16, 2011, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 16 2011

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 29-002

**Amendments to Titles 1 and 2 of the Chickasaw Nation Code
(Corrections)**

Explanation: This resolution corrects section numbers and adds missing titles in Titles 1 and 2 of the Chickasaw Nation Code.